

Invalid Consent in Cookie Walls on berlingske.dk

Date: 14-02-2024

Decision

Private Companies

Order

Cookies / Processing of Personal Data about

Website Visitors

Processing Security

Processed by the Data Council

The Data Protection Agency has issued an order that the use of cookie walls on berlingske.dk must comply with data protection regulations.

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Summary

The Data Protection Agency has made a decision in a case concerning Berlingske's specific approach, where users on berlingske.dk were met with a cookie wall when attempting to access embedded content, e.g., video players or blog posts. This meant that the content was inaccessible unless the user accepted the processing of their personal data for statistical and marketing purposes through the use of cookies.

The Data Protection Agency found that an approach where the user can only access embedded content on berlingske.dk, including video players and blog posts, by consenting to the processing of personal data for statistical and marketing purposes does not meet the requirements for valid consent under the General Data Protection Regulation (GDPR).

The company was therefore issued an order to ensure that the consent obtained from users on berlingske.dk meets the GDPR's requirements for valid consent.

The case has been processed by the Data Council.

The Data Protection Agency has previously assessed this approach in cases where access to the entire website was conditional on consent. The Data Protection Agency considered whether an approach where the user could access content on a website in exchange for consent or payment meets the GDPR's requirements for valid consent. You can read more about this in the case concerning Jysk Fynske Medier.

Also, read the guidelines for the use of cookie walls.

Decision

The Data Protection Agency hereby returns to the case, where the agency, based on several specific inquiries, decided to further investigate Berlingske Media A/S's (hereinafter Berlingske) processing of information about users on www.berlingske.dk.

The Data Protection Agency notes initially that in this decision, it has not assessed or evaluated Berlingske's subscription terms, and whether the fulfillment of the subscription agreement is made conditional on consent.

The case has, however, prompted the Data Protection Agency to generally consider the extent to which Berlingske's approach in relation to all users on berlingske.dk meets the GDPR's requirements regarding the voluntariness of consent, cf. GDPR Article 4, No. 11.

The case has been processed by the Data Council.

1. Decision

After reviewing the case, the Data Protection Agency finds that Berlingske's approach on berlingske.dk, where all users – regardless of whether they are subscribers or not – are prevented from accessing embedded content from third parties on the website unless they consent to the processing of personal data for statistical and marketing purposes through the use of cookies, does not meet the GDPR's requirements regarding the voluntariness of consent, cf. GDPR Article 6, Paragraph 1, Letter a, and Article 4, No. 11.

The Data Protection Agency therefore finds grounds to issue Berlingske an order to ensure that the consent obtained from users on berlingske.dk meets the GDPR's requirements for valid consent, cf.

GDPR Article 6, Paragraph 1, Letter a, and Article 4, No. 11.

The deadline for compliance with the order is March 14, 2024. The Data Protection Agency requests to receive confirmation by the same date that the order has been complied with.

The order is issued pursuant to GDPR Article 58, Paragraph 2, Letter d.

According to the Data Protection Act § 41, Paragraph 2, No. 4, anyone who fails to comply with an order issued by the Data Protection Agency pursuant to GDPR Article 58, Paragraph 2, Letter d, is subject to a fine or imprisonment for up to 6 months.

Finally, the Data Protection Agency finds – considering the principled questions in the case, which the agency has not previously had the opportunity to address – that there is no basis for criticizing Berlingske in light of the above.

Below follows a detailed review of the case and a justification for the Data Protection Agency's decision.

2. Case Presentation

It appears from the case that Berlingske employs an approach where Berlingske gives users on berlingske.dk a choice regarding access to embedded content on the website. This concerns content in the form of video content, live blogs, etc., that is embedded on the website, including in articles. The choice consists of the user being able to choose not to consent to the processing of personal data for statistical and marketing purposes, whereby the embedded content cannot be accessed. The user is then presented with the following text: "Oops, let us show you the content. It will be ready when you click 'allow all' followed by a button with the words 'Give permission'."

If the user clicks on "Give permission," they are directed...

back to Berlingske's consent solution, which has the following wording:

"We wish to obtain your consent to use cookies and collect personal data about your IP address, ID, and browser for statistical and marketing purposes. This information is shared with our partners, who store and access information on your device to show you targeted ads, deliver personalized content, conduct ad and content measurement, develop products, and gain audience insights. See more information under settings and in our privacy policy.

You can always withdraw your consent or change settings from our 'Cookie Declaration.' Your choices apply across the entire website."

If the user wishes to access the embedded sub-content in the articles, they must consent to the processing of personal data using cookies for all purposes; (i) preferences, (ii) statistics, and (iii) marketing.

2.1. Berlingske's Remarks

Berlingske has generally stated that Berlingske uses consent, cf. Article 6(1)(a) of the Data Protection Regulation, as the basis for processing information about users when they allow the use of cookies for all purposes to access inaccessible articles and/or videos. Furthermore, it is Berlingske's view that the consent meets the validity conditions of the Data Protection Regulation, including the requirement of voluntariness.

Berlingske has stated that the use of video content, etc., from third parties often occurs in connection with editorial articles, where, for example, recordings from the events mentioned in the article on berlingske.dk are shown. According to Berlingske, video content does not appear as independent editorial content. Video clips are displayed on berlingske.dk through an embedded video player, as an additional feature alongside relevant editorial links to articles in other media and posts from Twitter, Facebook, LinkedIn, etc.

The reason that live blogs, etc., are inaccessible if users, including subscribers, do not consent to cookies is, according to Berlingske, that the technology behind the live blog is provided by a third party. The format of the live blog means that it would not be possible to make live blogs accessible without cookies being set. To protect all users of berlingske.dk from unwanted cookies, the entire live blog has been made inaccessible. Users are made aware of this by being asked for consent to cookies if they wish to access the content.

However, the inaccessibility of live blogs is also due to the fact that there is embedded content from third parties, including from other media, authorities, or social media, which may set cookies for the

content to be made accessible.

Berlingske Media has stated that video content and live blogs are extra features that are not part of the subscription agreement entered into between Berlingske and the subscriber, as the subscriber only purchases access to read all articles in connection with the subscription. In this regard, Berlingske has stated that subscribers are clearly and explicitly informed at the time of entering into a subscription that it is only the articles on the site that are covered by the subscription. Extra features such as video content and live blogs are not articles and are therefore not covered by the subscription.

It is therefore Berlingske's view that the fulfillment of the subscription agreement is not made conditional on the subscriber's consent to the processing of personal data that is not necessary for the fulfillment of the agreement. Features such as video content and content in live blogs, etc., typically include content that Berlingske does not have the rights to, which is why it is shown by agreement with the producer, and the availability on berlingske.dk, including in relation to subscribers, depends on the rights that Berlingske can obtain in the agreement with the media company. For subscribers, there is still unobstructed and free access to the content on berlingske.dk that is covered by the subscription agreement (articles).

Berlingske has further stated that the availability of the content requires consent from users. If users refuse to give such consent, it means that the relevant features cannot be accessed because the format cannot function without it.

Berlingske believes that the requirement for users to consent to the processing of personal data for statistical and marketing purposes in order to access the embedded content from third parties in the articles does not constitute a so-called cookie wall. This is because access to the content covered by the subscription agreement is not made conditional on consent.

Berlingske has stated regarding the necessity of processing personal data using cookies for, among other things, statistical and marketing purposes, the following:

"In connection with the features that Berlingske Media uses on its website for the purpose of displaying video, image, and animation material as well as presenting live blogs and similar, cookies are placed that are necessary and essential for Berlingske Media's use of the relevant features and ensuring the possibility of profitably operating the online platform.

The statistical cookies that are placed are often supplier requirements and aim to analyze traffic and usage of the various special features. They typically measure the number and extent of views, which is why the accumulated statistics are determining and necessary for establishing the service that the individual suppliers require as payment for Berlingske Media's use of the various features. The need for these cookies thus arises from Berlingske Media's use of and..."

In relation to third parties, such as those providing video players, live blog solutions, etc.

The marketing cookies that are placed serve Berlingske Media's fundamental need to appropriately run advertisements on the website and thereby ensure the platform's profitability and Berlingske Media's continued ability to offer this online media to subscribers and other users. It is precisely because of marketing cookies that it is attractive for Berlingske Media's advertising partners to be able to purchase access to banner advertisements, etc., whereby advertisements are displayed or played in connection with the various special features. The need for these cookies thus partly arises from Berlingske Media's business model, where Berlingske Media – like many other similar media platforms and comparable actors both nationally and internationally – is also dependent on being able to generate a certain portion of its revenue through advertising. The ability to use advertisements in this way and to the same extent as its competitors is therefore crucial for Berlingske Media's continued digital presence.

It is Berlingske Media's clear opinion that this business model and approach to the use of features, advertising, etc., corresponds to the setup that the vast majority of other comparable news platforms and media use. It is also Berlingske Media's view that the use of the relevant special features actually presupposes that statistics and marketing cookies can be placed, which is why similar actors such as Politiken, Jyllands-Posten, and DR also place and manage cookies in the same completely ordinary manner.

[...]

In light of the existing technical solutions and setups, combined with the requirement that the consent

request should disturb the use of the relevant service as little as possible, it is, however, a difficult – if not impossible – task.

****3. Justification for the Data Protection Authority's Decision****

****3.1. Legal Basis****

It is stated in Article 6(1)(a) of the General Data Protection Regulation that the processing of personal data is lawful if the data subject has given consent to the processing of information about them for one or more specific purposes.

Consent is defined in Article 4(11) of the General Data Protection Regulation as any freely given, specific, informed, and unambiguous indication of the data subject's wishes, by which the data subject, by a statement or a clear affirmative action, signifies agreement to the processing of personal data relating to them.

Consent will not be considered freely given if the data subject does not have a genuine or free choice and control over information about themselves. Any form of undue pressure or influence on the data subject's free will renders the consent invalid.

A data controller may, to some extent, motivate the data subjects to give consent by offering a benefit associated with giving consent. For example, enrollment in a business's loyalty program may involve discounts that motivate the customer to consent to the processing of their data to receive promotional material from the business. The discount or benefits that consent to a loyalty program entails does not exclude that the consent can be considered voluntary. However, it is important to be aware of whether the lack of consent results in negative consequences for the data subject who does not wish to give consent, for example, in the form of additional costs.

According to the European Data Protection Board (EDPB) guidelines 5/2020 on consent, the following is stated regarding the condition of voluntariness:

The data controller can claim that their organization provides the data subjects with a genuine choice if they can choose between a service that involves consent to the use of personal data for additional purposes and a corresponding service offered by the same data controller that does not involve consent to the processing of personal data for additional purposes. As long as there is an option to have the contract fulfilled or the service covered by a contract provided by the data controller without giving consent to the other or additional use of personal data, it is not considered a conditional service. However, the two services must be completely identical.

The Data Protection Board does not believe that consent can be considered freely given if a data controller claims that there can be a choice between the data controller's service, which includes consent to the use of personal data for additional purposes, and a corresponding service offered by another data controller. In this case, the choice would depend on what other market players do and whether the data subject finds the other data controller's services completely identical. Furthermore, it would obligate the data controllers to monitor market developments to ensure that consent for their data processing activities remains valid, as competitors may subsequently change their services. Based on this argument, consent based on an alternative offered by a third party is not in accordance with the General Data Protection Regulation, which means that a service provider cannot prevent data subjects from accessing a service on the grounds that they have not given consent.

For consent to be considered freely given, access to services and features must not be conditional on a user's consent to have information stored or to gain access to information that is already stored on a user's terminal equipment (so-called cookie walls).

****Example 6a:**** A provider of a website creates a...

****script, which prevents content from being visible, with the exception of a request to accept cookies and information about which cookies are inserted, and for what purposes the data will be processed. It is not possible to access the content unless one clicks on the "Accept cookies" button. Since the data subject does not have a real choice, his or her consent is not given voluntarily. There is no valid consent, as the provision of the service depends on whether the data subject clicks on the "Accept cookies" button. The data subject does not have a real choice.****

In the Danish Data Protection Agency's decision regarding Jysk Fynske Medier's use of cookie walls[3], the agency found that the company's specific approach, where website visitors could access

parts of the content on jv.dk (unlocked articles) against their consent or all content on jv.dk by subscribing, did not meet the requirements for valid consent. This was because the service offered in exchange for consent was not substantially equivalent to that offered for payment, and thus the visitors were not genuinely presented with a free choice.

****3.2. Assessment of the Danish Data Protection Agency****

It appears from the case that users can only access partial content embedded on berlingske.dk, including video players and blog posts, by consenting to the processing of personal data for statistical and marketing purposes through the use of cookies. The Danish Data Protection Agency believes that users can, under certain conditions, be considered to have a real and voluntary choice in a situation where a company offers users access to partial content on the website in exchange for obtaining consent to process personal data, as long as companies also offer an alternative way to access the content that does not involve the processing of personal data. However, this presupposes that the partial content offered by the company must be substantially equivalent, regardless of whether users give consent or, for example, pay to access the content or service.

On this basis, the Danish Data Protection Agency assesses that Berlingske's approach, where users can only access partial content embedded on berlingske.dk, including video players and blog posts, by consenting to the processing of personal data for statistical and marketing purposes, does not meet the requirements for valid consent under the General Data Protection Regulation, cf. Article 6(1)(a) and Article 4(11) of the General Data Protection Regulation.

In this regard, the Danish Data Protection Agency has particularly emphasized that Berlingske conditions access to the embedded partial content on users consenting to the processing of personal data for statistical and marketing purposes, and that Berlingske thus does not offer a reasonable alternative in connection with the granting of consent. This means that users are not genuinely presented with a free choice.

Therefore, in the opinion of the Danish Data Protection Agency, Berlingske's approach can be equated with the use of cookie walls in line with the agency's practice in this regard. The approach only differs from the Danish Data Protection Agency's practice in that Berlingske makes access to partial content conditional on consent, while the agency has previously assessed this approach in cases where access to the entire website was conditional on consent.

According to the Danish Data Protection Agency, there are no circumstances that justify treating these two situations differently.

The Danish Data Protection Agency therefore finds grounds to issue Berlingske an order to ensure that the consent obtained from users on berlingske.dk meets the requirements for valid consent under the General Data Protection Regulation, cf. Article 6(1)(a) and Article 4(11) of the General Data Protection Regulation.

The deadline for compliance with the order is March 14, 2024. The Danish Data Protection Agency requests to receive confirmation by the same date that the order has been complied with.

The order is issued pursuant to Article 58(2)(d) of the General Data Protection Regulation.

According to Section 41(2)(4) of the Data Protection Act, anyone who fails to comply with an order issued by the Danish Data Protection Agency pursuant to Article 58(2)(d) of the General Data Protection Regulation is punishable by a fine or imprisonment for up to 6 months.

Finally, the Danish Data Protection Agency, considering the principled questions in the case, which the agency has not previously had the opportunity to address, finds no grounds to criticize Berlingske in relation to the above.

****4. Concluding Remarks****

The Danish Data Protection Agency regrets the long processing time, which is due to a high workload at the agency.

The Danish Data Protection Agency requests to be informed by March 14, 2024, at the latest, when the order issued by the agency has been complied with.

For the sake of completeness, the Danish Data Protection Agency notes that to the extent Berlingske wishes to comply with the order by using an approach where users are offered access in exchange for consent or payment, users must be able to gain access to content that is substantially equivalent to the content that users can access for payment by giving consent. Furthermore, Berlingske must be able to demonstrate that the processing of personal data for the stated purposes – statistics and marketing – is a necessary part of the alternative to access for payment.

The Danish Data Protection Agency refers in general to the agency's decisions in the cases concerning Jysk Fynske Medier[4] and Gul og Gratis' use of cookie walls[5] and to the agency's general guidelines on the use of cookie walls[6].

[1] Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

[2] The Danish Data Protection Authority's guidance on consent, section 2.3.

[3] The Danish Data Protection Authority's case no. 2021-31-5553 of 8 February 2023

[4] The Danish Data Protection Authority's decision in case no. 2021-31-5553 of 8 February 2023: <https://www.datatilsynet.dk/afgoerelser/afgoerelser/2023/feb/jysk-fynske-mediers-brug-af-cookie-walls>

[5] The Danish Data Protection Authority's decision in case no. 2021-31-4871 of 8 February 2023: <https://www.datatilsynet.dk/afgoerelser/afgoerelser/2023/feb/gul-og-gratis-brug-af-cookie-walls>

[6] The Danish Data Protection Authority's guidelines on the use of cookie walls: <https://www.datatilsynet.dk/hvad-siger-reglerne/vejledning/cookies/cookie-walls>